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Colusa Mobile Home Park, LLC, et al. v. Andy Lee Cipollo

Tuesday, August

4, 2026

[TENTATIVE] ORDER OVERRULING

IN PART, SUSTAINING IN PART, DEMURRER BY CROSS-DEFENDANTS, COLUSA MOBILE HOME PARK LLC AND GIUSEPPE FINAZZO', TO CROSS-COMPLAINT (6500)

I. BACKGROUND

The first amended complaint alleges Plaintiffs, Colusa Mobile Home Park, LLC and Guiseppe Finazzo (collectively "Colusa" or "Plaintiffs") hired Andy Lee Cipollo ("Defendant") as an independent contractor to perform landscape services and tree trimming; however, Defendant was allegedly not licensed to perform the work. Plaintiffs allege claims for breach of contract, fraud, conversion, defamation, and other statutory violations.

On

April 2, 2026, Defendant filed a first amended cross-complaint ("FAXC") alleging Colusa failed to reimburse him for out-of-pocket expenses incurred while performing work for Colusa as a property manager. Defendant Cipollo alleges claims for violation of the Labor Code for failing to reimburse, for misclassification, unjust enrichment, and for declaratory relief.

Cross-Defendants

Colusa demurs to the entire FAXC on grounds of uncertainty and for failure to

state claims.

II.

DISCUSSION

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions, deductions, or conclusions of fact or law. (*Moore v. Conliffe* (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians Service* (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts of the case stated, "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 609–610.)

A demurrer may be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, vague, or ambiguous that they do not sufficiently apprise a defendant of the issues it is being asked to meet. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).) However, demurrers for uncertainty are disfavored and are strictly construed, even where a complaint is in some respects uncertain, "because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993)

14 Cal.App.4th 612, 616; Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.)

III.

DISCUSSION

A.

Preliminary issues

Cross-Defendant

argues he was improperly served with the demurrer by electronic mail without his consent, and he did not receive all of the papers. Cross-Defendant asks the Court to consider the untimely opposition, or alternatively, to continue the hearing to allow for proper service.

An

unrepresented party may be served electronically with consent. (Code Civ. Proc., § 1010.6.) Cross-Defendant maintains he was served electronically as reflected on the proof of service although he did not consent.

The

Court grants Cross-Defendant's alternative request to consider the opposition. The court has discretion to consider late papers in favor of the strong policy favoring disposition of the case on the merits. (Kapitanski v. Von's (1983) 146 Cal.App.3d 29, 32.)

Cross-Defendants

did not file a reply brief as of August 3, 2026.

B.

Individual liability against Cross-Defendant, Giuseppe Finazzo ("Finazzo"). Overruled.

Contrary

to Colusa's argument, the Cross-Complaint alleges a basis for liability against Finazzo because Cross-Complainant alleges Finazzo and Colusa operate a mobile home park. (FAXC ¶ 2.) Cross-Complainant alleges that he performed work for Cross-Defendants, who failed to reimburse Cross-Complainant for expenses incurred in performing his duties. (FAXC ¶ 3.) Cross-Complainant alleges an employment relationship. (FAXC ¶ 36.)

C.

(1) Failure to Reimburse Expenses under Labor Code section 2802. Overruled.

Labor

Code § 2802 requires employers to indemnify an employee for “all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties, or of his or her obedience to the directions of the employer, even though unlawful, unless the employee, at the time of obeying the directions, believed them to be unlawful.” (Lab. Code, § 2802.)

Colusa

does not cite any authority that requires Cross-Complainant to specifically identify the expenses incurred, dates, amount, purpose, facts showing the expenses were unnecessary, etc. (Dem. 6:28-7:8.) General rules of pleading do not require that the plaintiff plead evidentiary facts supporting the allegation of ultimate fact. (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1390 [“It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts.”].)

Colusa

also contends it cannot determine what expenses were necessary, or whether they were incurred in connection with any alleged employment duties, or the amount being claimed. (Dem. 7:18-22.) Colusa does not identify cases that require this specificity. Demurrers for uncertainty are strictly construed, even where a complaint is in some respects uncertain, “because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Colusa

does not cite any authority for the contention that Cross-Complainant has not alleged facts to support the claim. The necessary elements are “(1) the employee made expenditures or incurred losses; (2) the expenditures or losses were incurred in direct consequence of the employee's discharge of his or her duties, or obedience to the directions of the employer; and (3) the expenditures or losses were necessary.” (Gallano v. Burlington Coat Factory of California, LLC (2021) 67 Cal.App.5th 953, 960.)

The

claim is supported by the alleged facts. Cross-Complainant performed work from June 24, 2024, through April 25, 2025, that included maintenance, landscaping, tree work, tenant coordination clean up, operational tasks and property management activities. (FAXC ¶¶ 3-4.) Cross-Complainant incurred out of pocket expenses for dump fees, equipment rentals, and materials and Cross Defendants failed to reimburse those expenses. (FAXC ¶ 8-9.)

D.

2nd cause of action for
“misclassification.” Overruled.

This

claim appears to allude to facts to support an employment relationship as Cross-Defendants allegedly controlled the “manner and method of work.” (SAXC ¶ 21.) Colusa acknowledges that Cross-Complainant may be attempting to allege employee statute alluding to the “ABC test” or “Borello factors” without citing legal authority for either of those tests. (Dem. 8:26-28.) As this argument is undeveloped, demurrer is overruled.

E.

Unjust Enrichment. Sustained.

Cross-Defendants

are correct that unjust enrichment is not a stand-alone cause of action. Unjust enrichment is not a cause of action but is an equitable principle that underlies “various legal doctrines and remedies.” (County of San Bernardino v. Walsh (2007) 158 Cal.App.4th 533, 542.)

It does not describe a theory of recovery, “but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so.” (Melchior v. New Line Productions, Inc. (2003) 106 Cal.App.4th 779, 793.) Accordingly, the demurer is sustained as to this allegation.

F.

Declaratory Relief. Overruled.

Colusa contends (without authority) that

this claim is uncertain and argues that Cross-Complainant is required to identify the specific legal rights to be declared; specific duties to be declared; precise controversy requiring judicial determination; any declaration sought as to either

Cross-Defendant; or any controversy independent of the other causes of action.
(Dem 10:7-12. Cross-Defendants contend this is a duplication of the misclassification claim.

This claim alleges that a dispute exists regarding the nature of the parties' relationship, for which Cross-Complainant seeks a judicial determination. (FAXC ¶¶ 69-71.)

"Strictly speaking, a demurrer is a procedurally inappropriate method for disposing of a complaint for declaratory relief. " (Lockheed Martin Corp. v. Continental Ins. Co. (2005) 134 Cal.App.4th 187, 221.) The pleading is sufficient if "it shows an actual controversy; it need not show that plaintiff is in the right." (Id.)

Cross-Complainant has alleged facts to show that Cross-Defendants directed Cross-Complainant to perform the work, and that Cross-Complainant performed work under the direction of Finazzo among other factors to demonstrate the control, manner, and method of the work. (FAXC ¶ 17, 21, 24-25, 27, 30, 32, 35.)

The pleading alleges that Cross-Defendants were inconsistent regarding the nature of the work, the employment relationship, and responsibility for workplace conditions. (FAXC ¶ 36.) Cross-Defendants failed to maintain workers' compensation insurance coverage "despite directing Cross-Complainant to engage in hazardous activities." (FAXC ¶ 38.)

The facts support the request for an order declaring whether the parties had an employment relationship.

IV. CONCLUSION

Based on the foregoing, demurrer to the first amended cross-complaint is OVERRULED in part, SUSTAINED in part. Cross-Defendants are ordered to file an answer within 20 days.